

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chris Olmsted	Team: Squad #09	CCRB Case #: 202101099	☒ Force ☐ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 02/16/2021 8:10 PM, Tuesday, 09/07/2021 9:48 AM, Wednesday, 11/03/2021 11:13 AM	Location of Incident: § 87(2)(b) CCRB	18 Mo. SOL 8/16/2022	Precinct: 28
Date/Time CV Reported Wed, 02/17/2021 4:59 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 02/17/2021 4:59 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Vincent Bracco	26344	966969	023 PCT
2. POM Andrew Aiello	21442	959447	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Andrew Aiello	Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello stopped § 87(2)(b)	A . Substantiated
B . PO Vincent Bracco	Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco stopped § 87(2)(b)	B . Substantiated
C . POM Andrew Aiello	Force: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello used physical force against § 87(2)(b)	C . Substantiated
D . PO Vincent Bracco	Force: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco used physical force against § 87(2)(b)	D . Substantiated
E . POM Andrew Aiello	Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello frisked § 87(2)(b)	E . Substantiated
F . PO Vincent Bracco	Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco searched § 87(2)(b)	F . Substantiated
G . POM Andrew Aiello	Untruthful Statement: On September 7, 2021, at the CCRB, Police Officer Andrew Aiello provided a false official statement to the CCRB.	G . Substantiated
H . PO Vincent Bracco	Untruthful Statement: On November 3, 2021, at the CCRB, Police Officer Vincent Bracco provided a false official statement to the CCRB.	H . Substantiated

Case Summary

On February 17, 2021, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System on behalf of her son, § 87(2)(b).

On February 16, 2021, at approximately 8:10 p.m., in the vicinity of § 87(2)(b) in Manhattan, Police Officers Andrew Aiello and Vincent Bracco, both of the 23rd Precinct, stopped § 87(2)(b) (**Allegations A and B: Abuse of Authority, Substantiated**) and used physical force against him (**Allegations C and D: Force, Substantiated**). PO Aiello frisked § 87(2)(b) (**Allegation E: Abuse of Authority, Substantiated**), and PO Bracco searched § 87(2)(b) (**Allegation F: Abuse of Authority, Substantiated**).

On September 7, 2021, at the CCRB, Police Officer Andrew Aiello provided a false official statement to the CCRB (**Allegation G: Untruthful Statement, Substantiated**). On November 3, 2021, at the CCRB, Police Officer Vincent Bracco provided a false official statement to the CCRB (**Allegation H: Untruthful Statement, Substantiated**).

§ 87(2)(b) received summons § 87(2)(b) for § 87(2)(b) and summons § 87(2)(b) for § 87(2)(b) as a result of this incident. (BR [Board Review] 01)

On March 16, 2021, NYPD Legal provided five BWC videos related to this incident, including videos from PO Aiello (BR 02) and PO Bracco (BR 03). The CCRB obtained NYCHA footage relevant to this incident (BR 04).

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco stopped § 87(2)(b)

Allegation (C) Force: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello used physical force against § 87(2)(b)

Allegation (D) Force: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Andrew Aiello frisked § 87(2)(b)

Allegation (F) Abuse of Authority: On February 16, 2021, in the vicinity of § 87(2)(b) in Manhattan, Police Officer Vincent Bracco searched § 87(2)(b)

It is undisputed that on February 16, 2021, at approximately 8:10 p.m., in the vicinity of § 87(2)(b) in Manhattan, PO Aiello and PO Bracco initiated a stop of § 87(2)(b). It is undisputed that § 87(2)(b) fled, and that officers pursued him. It is undisputed that, upon catching up to § 87(2)(b), PO Aiello pushed § 87(2)(b) from behind, causing § 87(2)(b) to hit a low metal fence and fall to the ground. It is undisputed that PO Bracco punched § 87(2)(b) in the head while § 87(2)(b) was on the ground. It is undisputed that PO Aiello frisked § 87(2)(b) after stopping him. It is undisputed that PO Bracco searched § 87(2)(b) after stopping him.

PO Aiello (BR 06) and PO Bracco (BR 07) each stated to the CCRB that while they were

on patrol in an RMP, § 87(2)(b) walked in front of the car, saw the officers inside, and “bladed his body” away from officers. Both officers stated they made no other observations of § 87(2)(b) or his clothes that suggested to them that § 87(2)(b) was armed. Both officers stated they continued to follow § 87(2)(b) in the RMP, that § 87(2)(b) saw the vehicle and began running from the officers, and that they pursued § 87(2)(b) on foot. PO Aiello stated he reached § 87(2)(b) first and used physical force against him to stop § 87(2)(b)’s flight. PO Bracco stated he used physical force against § 87(2)(b) when he caught up to § 87(2)(b) and PO Aiello because he feared § 87(2)(b) had a weapon and he wanted to assist PO Aiello in gaining control of § 87(2)(b).

PO Aiello’s BWC recording begins during the foot chase and does not capture the events that precipitated the stop (BR 02). PO Bracco’s recording begins even later, when PO Aiello and § 87(2)(b) are already on the ground (BR 03).

PO Aiello and PO Bracco gave statements to the NYPD’s investigation identical in sum and substance to the statements they gave to the CCRB. Sergeant Sandoval noted in his investigation: [unedited]

Video footage collected in regards to the incident however contradicts Police Officer Bracco’s statements. Video camera #77550 (Entrance), from § 87(2)(b) shows that at the 2007.56 hours timeframe, § 87(2)(b) the alleged suspect, merely crossing a path made for pedestrians to walk inside of the § 87(2)(b) complex. Police Officer Aiello, who was the unmarked RMP operator and Police Officer Bracco, slowed down and briefly stopped at the path’s entrance as § 87(2)(b) crossed it. Police Officer Bracco’s RMP, then drove around the pedestrian path, however never made any contact with § 87(2)(b). Additional video footage from cameras located at § 87(2)(b) facing North and South bound on § 87(2)(b) and § 87(2)(b), shows that at approximately 2009 hours Police Officer Bracco’s unmarked RMP was parked at the South East corner of § 87(2)(b) and § 87(2)(b), next to the subway station, Police Officer Bracco and Police Officer Aiello then exited the above mentioned RMP and initiated a foot pursuit after § 87(2)(b) who was walking North bound on § 87(2)(b) sidewalk. Upon noticing he was being chased, § 87(2)(b) ran away from both officers heading South bound on § 87(2)(b) sidewalk towards § 87(2)(b). § 87(2)(b) then crossed § 87(2)(b) crosswalk with a green light and continued running East bound on § 87(2)(b) sidewalk, while Police Officer Aiello and Police Officer Bracco along with 2 other UMOS, continued the chase after § 87(2)(b). The evidence revealed that at no time § 87(2)(b) jaywalked, acted violently or in a threatening behavior towards any of the previously mentioned officers or pedestrian during the incident. A review of video footage from camera § 87(2)(b) located at § 87(2)(b), and the review of Police Officer Aiello’s own BWC showed that at approximately 2012 hours Police Officer Aiello caught up to § 87(2)(b) pushed him towards a fence, conducted a forcible takedown and momentarily applied a prohibited method of restraint by placing his right knee on § 87(2)(b) back, which was captured by camera § 87(2)(b) at 2012:21 hours. Seconds later, Police Officer Bracco arrived at the location and immediately grabbed § 87(2)(b) by the back of the neck with his left hand and simultaneously punched § 87(2)(b) in the face with his right hand. Police Officer Bracco’s use of force was captured by Officer Aiello’s BWC, during the 1-minute buffer prior to the BWC’s activation. (BR 05)

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The following Patrol Guide Procedures were in effect on February 1, 2021:

Patrol Guide Procedure 212-11 stated, “A stop may be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor.” It further stated, “A frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous.” (BR 08)

Patrol Guide Procedure 221-01 stated force may be used “when it is reasonable to place a person in custody or to prevent escape from custody.” (BR 09)

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It is therefore recommended that **Allegations A, B, C, D, E, and F** be closed as **Substantiated**.

Allegation (G) Untruthful Statement: On September 7, 2021, at the CCRB, Police Officer Andrew Aiello provided a false official statement to the CCRB.

Allegation (H) Untruthful Statement: On November 3, 2021, at the CCRB, Police Officer Vincent Bracco provided a false official statement to the CCRB.

PO Aiello (BR 06) and PO Bracco (BR 07) provided largely consistent statements to the CCRB in their respective September 7, 2021 and November 3, 2021 interviews. The officers stated in sum and substance that they stopped, used force against, frisked, and searched § 87(2)(b) because § 87(2)(b) bladed his body away from police officers and preemptively ran from police officers.

PO Aiello and PO Bracco made in sum and substance the same statements to the NYPD. The NYPD obtained video evidence showing § 87(2)(b) did not blade his body from police officers and showing that § 87(2)(b) only began running after officers began chasing him. Based on these findings, the NYPD substantiated “Perjury/False Statements” allegations against both officers. (BR 05)

Patrol Guide Procedure 203-08 offers the following definitions:

“FALSE STATEMENT - An intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.”

“MATERIAL FACT - A significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail.” (BR 10)

DCT Case Number 2016-16097 held that in order to prove a false statement, it must be demonstrated that the statement was not only false but created a “false description of events,” as opposed to statements that merely deny an administrative charge of misconduct. (BR 11)

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, it is recommended that **Allegations G and H** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (BR 12)
- PO Aiello has been a member of service for 6 years and has been a subject in eight CCRB complaints and 24 allegations, of which 3 were substantiated.:
 - 202101069 involved substantiated allegations of Physical force (twice) and a frisk against PO Aiello. The Board recommended Charges and the NYPD has not yet imposed discipline.
- PO Bracco has been a member of service for 3 years and has been a subject in five CCRB complaints and 14 allegations, of which two were substantiated.:
 - 202101069 involved substantiated allegations of a frisk and a stop against PO Bracco. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest, false imprisonment, assault, battery, malicious prosecution, and deprivation of civil rights, and seeking \$50 million as redress (BR 13). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 09

Investigator:	<u>Christopher Olmsted</u>	<u>Investigator Chris Olmsted</u>	<u>07/11/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Wassim Abedrabbo</u>	<u>IM Wassim Abedrabbo</u>	<u>07/13/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date